

#	Case Name	Tentative
		Plaintiffs are granted ten days leave to amend. Defendant shall give notice of this ruling.
53.	Morrow v. General Motors LLC 2025-01465502	Defendant General Motors LLC's Demurrer to the First Amended Complaint is OVERRULED. GM demurs to the fourth and fifth causes of action. Fourth Cause of Action – Breach of the Implied Warranty of Merchantability "The statute of limitations for breaches of the implied warranty of merchantability is four years." (<i>Montoya v. Ford Motor Company</i> (2020) 46 Cal.App.5th 493, 495.) Courts have applied Commercial Code section 2725 to claims arising from an implied warranty. (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1305-1306.) The future performance exception articulated within Commercial Code section 2725, subdivision (2), "must be narrowly construed." (<i>Cardinal Health 301, Inc. v. Tyco Electronics Corp.</i> (2008) 169 Cal. App. 4th 116, 130.) The exception "applies only when the seller has expressly agreed to warrant its product for a specific and defined period of time." (<i>Ibid.</i>) Consequently, the California Court of Appeal has interpreted and applied the future performance exception almost exclusively in the express warranty context. (<i>Id.</i> at pp. 129-131 (citing cases)). To emphasize this point, the <i>Cardinal Health</i> court stated that, "[b]ecause an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held [that] it is not a warranty that explicitly extends to future performance of the goods." (<i>Id.</i> at pp. 133-134.) Notably, however, "[o]ne innovation of the Song-Beverly Act is an express provision for a duration of the implied warranty of merchantability." (<i>Mexia</i> 174 Cal.App.4th at 1304.) With respect to Song-Beverly Act claims, "[t]he duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable." (Civ. Code, § 1791.1, subd. (c).) Based on the above, the reasoning articulated in <i>Cardinal Health</i> does not appear applicable: In the context of a Song-Beverly claim, an implied warranty has a "specific and defined period of time." The Fourth Cause of Action accrued "when

#	Case Name	Tentative
		the breach [was] or should have been discovered.” (Cal. U. Com. Code, § 2725, subd. (2).) “A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer.” (<i>E-Fab, Inc. v. Accountants, Inc. Services</i> (2007) 153 Cal.App.4th 1308, 1319.) Here, Plaintiff obtained the vehicle on October 3, 2019. Thereafter, Plaintiff experienced defects and non-conformities in the vehicle including, but not limited to, engine and transmission issues. (FAC, ¶ 11-13.) From November 11, 2022, to May 9, 2025, Plaintiff presented her vehicle to Defendant’s authorized repair facilities. (Ibid.) As to each of these instances, the FAC alleges the facility “advised the Vehicle had been repaired and was working as designed.” (Ibid.) Plaintiff alleges she had no way of uncovering Defendant’s deception regarding the repairs because Defendant performed various diagnostics and/or undertook repairs and claimed that nothing was wrong with the vehicle. (FAC, ¶ 14.) Additionally, regardless of whether delayed discovery is applied, the repair allegations support tolling. Commercial Code section 2725 makes clear that this section “does not alter the law on tolling of the statute of limitations...” (Cal. U. Com. Code, § 2725, subd. (4).) “Tolling during a period of repairs generally rests upon the same legal basis as does an estoppel to assert the statute of limitations, i.e., reliance by the plaintiff on the words or actions of the defendant that repairs will be made.” (<i>Cardinal Health, supra</i>, 169 Cal.App.4th at pp. 133-134; See also <i>Aced v. Hobbs-Sesack Plumbing Co.</i> (1961) 55 Cal.2d 573, 585 [“The statute of limitations is tolled where one who has breached a warranty claims that the defect can be repaired and attempts to make repairs.”].) In this case, the FAC alleges consistent repairs and representations that defects were cured between November 11, 2022, and May 9, 2025. Such repair allegations support tolling. Because the initial complaint was filed within four years of the first and last repair attempt, the complaint is timely.

#	Case Name	Tentative
		Accordingly, the demurrer to the fourth cause of action is OVERRULED. Fifth Cause of Action – Fraudulent Inducement-Concealment a. Statute of limitations Code of Civil Procedure section 338(d) provides that an action for fraud must be brought within three years. Such a claim does not accrue, however, “until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc. § 338(d).) Where a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory. (<i>Mills v. Forestex Co.</i> (2003) 108 Cal.App.4th 625, 641.) “When a plaintiff alleges the fraudulent concealment of a cause of action, the same pleading and proof is required as in fraud cases: the plaintiff must show (1) the substantive elements of fraud, and (2) an excuse for late discovery of the facts. [Citation.] With respect to ... the belated discovery, the complaint must allege (1) when the fraud was discovered; (2) the circumstances under which it was discovered; and (3) that the plaintiff was not at fault for failing to discover it or had no actual or presumptive knowledge of facts sufficient to put him on inquiry.” (<i>Community Cause v. Boatwright</i> (1981) 124 Cal.App.3d 888, 900.) Here, the FAC alleges that on October 3, 2019, Plaintiff entered into a warranty contract with GM. (FAC, ¶ 6.) Plaintiff filed suit against GM on May 10, 2025. As such, unless Plaintiff alleges sufficient facts in support of delay discovery or tolling, the three-year statute of limitations for this claim expired before the original Complaint was filed. Defendant argues the FAC does not include any allegations that justify their late filing. The FAC alleges “[d]effects and nonconformities to warranty manifested themselves” during the “express warranty period.” (FAC, ¶ 19.) Therefore, Plaintiff cannot sustain the burden of demonstrating that they did not discover with reasonable diligence the actions giving rise to their claim within the applicable limitations period. However, as argued by Plaintiff, even though Plaintiff’s vehicle was showing signs of nonconformity earlier, Plaintiff only discovered Defendant’s fraudulent conduct of selling defective

#	Case Name	Tentative
		engines shortly before the complaint was filed. Up until that time, Defendant had represented that either there was nothing wrong with the vehicle or it had been repaired. Accordingly, the fifth cause of action is not patently barred by the statute of limitations based on the allegations in the FAC and the demurrer is OVERRULED on this ground. b. Failure to plead sufficient facts to state a cause of action for fraud "[T]he necessary elements of a concealment/suppression claim consist of (1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable reliance; and (5) resulting damage. Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship." (<i>Dhital v. Nissan North America</i> (2022) 84 Cal.App.5th 828, 843 [cleaned-up].) In <i>Dhital</i>, the court found a cause of action for fraudulent concealment was sufficiently pled where the "plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car." (<i>Dhital</i>, supra, 84 Cal.App.5th at 844.) Similarly, Plaintiff alleges engine defects caused "unsafe conditions in vehicles equipped with the 3.6L engine, including, but not limited to, the engine losing power while driving." (FAC, ¶ 74.) These conditions presented a safety hazard because they severely affected the driver's ability to control the vehicle, and substantially increased the likelihood that the engine would fail, lose power, and/or cut off during operation, thereby resulting in accidents involving property damage, personal injury and even death. (<i>Ibid.</i>) The FAC further alleges Defendant had knowledge of such defects prior to Plaintiff acquiring the vehicle through sources not available to consumers such as Plaintiff, including but not limited to pre-releasing testing data; early consumer complaints about the engine defect; dealership repair orders; testing conducted by GM in response to these complaints; as

#	Case Name	Tentative
		well as other internal sources of information possessed exclusively by GM and its agents. (FAC, ¶ 76.) Prior to purchasing the vehicle, Plaintiff reviewed GM's marketing and advertising materials, viewed GM's vehicle specific window sticker, and took the vehicle for a test drive. At no time prior to the purchase did GM reveal the dangers with the engine. (FAC, ¶¶ 9, 78.) Defendant contends Plaintiff failed to allege a transactional relationship that would give rise to a duty to disclose. This argument was rejected in <i>Dhital</i>, supra. The court in <i>Dhital</i> held that a fraud claim was not barred even though there was no direct relationship between the buyer and manufacturer, because the buyer purchased from an authorized dealership, the manufacturer backed the vehicle with an express warranty, and the manufacturer's authorized dealerships were its agents for purposes of vehicle sales. (<i>Dhital</i>, supra, 84 Cal.App.5th at 844.) All such facts are alleged in the FAC. Accordingly, Plaintiff has stated adequate facts to support her claim for fraudulent concealment and inducement, and the demurrer is OVERRULED on this ground. c. Economic Loss Rule The economic loss rule "precludes recovery for purely economic loss due to disappointed expectations, unless the plaintiff can demonstrate harm above and beyond a broken contractual promise. Conduct amounting to a breach of contract becomes tortious only when it also violates a duty independent of the contract arising from principles of tort law." <i>Robinson Helicopter Co. v. Dana Corp.</i> (2004) 34 Cal.4th 979, 988-989 (also noting prior application of economic loss rule to negligence cause of action). Defendant relies on <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1 in support of its economic loss argument. However, <i>Rattagan</i> is not a Song-Beverly case. Moreover, it was reframed as specifically about fraud-in-the-performance, and Plaintiffs have alleged fraud-in-the-inducement, so the fraud-in-the-performance test in <i>Rattagan</i> does not apply. <i>Dhital</i> is the appropriate precedent here, as it specifically addressed fraudulent inducement by concealment claims as well within the context of the Song-Beverly Act. <i>Dhital</i> held that the economic loss rule does not bar claims for fraudulent

#	Case Name	Tentative
		inducement, including, as alleged here, through fraudulent concealment. (Id., p. 843.) Accordingly, the demurrer on this ground is OVERRULED. The case management conference is continued to November 2, 2026 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.
54.		
55.	Orthopaedic Specialty Institute Medical Group of Orange County v. OCA Care of CA LLC 2025-01483911	Plaintiff Orthopaedic Specialty Inst. Medical Group's Motion for Leave to file a First Amended Complaint is GRANTED. Plaintiff seeks leave to amend the complaint to add new allegations against the presently named Defendant as well as additional Defendants to be added. Pursuant to Code of Civil Procedure section 473, subdivision (a), the court may, "in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars...." (Code Civ. Proc., § 473, subd. (a).) A motion for leave to amend must also comply with California Rules of Court, Rule 3.1324. Here, the declaration of Kathryn B. Salmond satisfies the requirements of Rule 3.1324. There is currently no trial date set. Accordingly, the court exercises its discretion and the motion is GRANTED. Plaintiff is ordered to file and serve the proposed First Amended Complaint within 30 days. Plaintiff shall give notice of this ruling.
56.	Bufkin v. Vista Del Rio Housing Partners, LP 2024-01406584	Defendant City of Orange's Motion for an Order to Depose an Incarcerated Defendant – Irvin Garcia is GRANTED. (Code Civ. Proc., §§ 1995, 1996.) Defendant may depose prisoner Irvin Garcia at the Theo Lacy Facility in Orange, California. Defendant to submit a proposed order, and to give notice of this ruling.
57.	Hope Autism Therapies, LLC v. Dybnis	Defendants Barbara Dybnis, individually and as trustee of the Sacha Dybnis and Barbara Dybnis Family Trust, and the Sacha Dybnis and Barbara Dybnis Family Trust's motion to compel